

RLS RAINS LUCIA STERN ST. PHALLE & SILVER, PC

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March 2, 2021

VIA EMAIL [IAPPLEYARD@OAKLANDCA.GOV] & U.S. MAIL

Ian Appleyard, Director of Human Resources Management
City of Oakland
150 Frank H. Ogawa Plaza, 2nd Floor
Oakland, CA 94612

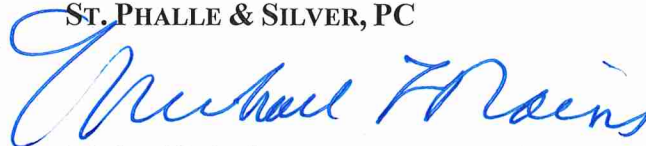
Re: I.A.D. Case Number 18-0249

Dear Mr. Appleyard:

Pursuant to Article X et seq., of the Memorandum of Understanding between the City of Oakland, and the Oakland Police Officers' Association, and notwithstanding the position we have explained in our letter this date to City Administrator Ed Reiskin, attached hereto, Sergeant Negrete and Officers Tanaka, Phillips, Hraiz and Berger request arbitration of their existing grievances in the above case.

Very truly yours,

RAINS LUCIA STERN
ST. PHALLE & SILVER, PC



Michael L. Rains

Cc: Barry Donelan, President of Oakland POA
Ed Reiskin, City Administrator
Barbara Parker, City Attorney
Rocky Lucia, Esq.
Harry Stern, Esq.
Zach Lopes, Esq.

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VIA EMAIL [EREISKIN@OAKLANDCA.GOV] & U.S. MAIL

Ed Reiskin, City Administrator
City of Oakland
1 Frank H. Ogawa Plaza, 3rd Floor
Oakland, CA 94612

**Re: Negrete *et al.* Step 3 Demand for Implementation of Employee Relations
Officer Decisions**

Dear Mr. Reiskin:

As you are aware, this office represents Sergeant Francisco Negrete and Police Officers William Berger, Brandon Hraiz, Craig Tanaka and Josef Phillips. I sent you correspondence yesterday demanding delivery of the final decisions of the City's retained Employee Relations Officer, Jeffrey Sloan, which I have yet to receive. While that issue remains outstanding, please accept this letter as a response to your letter of February 25, 2021, wherein you assert that our clients "have the right to advance [their grievances] to arbitration," thereby implying that the grievances have *not already* been resolved by the Step 3 decisions. Although it is our firm position that Mr. Sloan's decisions to reinstate our clients have resolved their grievances, we are filing a separate letter contemporaneous to this letter reserving our rights to arbitrate their grievances, in the event that were to become necessary.

Our clients have the right to enforce the City's compliance with the administrative disciplinary appeal process set forth in the Memorandum of Understanding between the City and Oakland Police Officers' Association ("MOU"). (Gov. Code §§ 3304, 3304.5 ["An administrative appeal instituted by a public safety officer under this chapter shall be conducted in conformance with rules and procedures adopted by the local public agency"]; *Pomona College v. Superior Court* (1996) 45 Cal.App.4th 1716, FN 10 [an employer is required by law to give its employees the benefit of existing policies and procedures], and *Frates v. Burnett* (1970) 9 Cal.App.3d 63, 69-70 [a public employee is entitled to rely upon, and is entitled to enforcement of, rules governing the terms and conditions of employment].)

Step 3 of the MOU's grievance procedure is intended to afford the grievant and City the opportunity to resolve outstanding disputes in an expeditious manner "at the lowest possible administrative level." [Art. X.C.3 ("Should the grievance remain unresolved, the employee ... may, ... submit the grievance in writing to the Employee Relations Officer"); Art. X.A.] It does

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so by assigning the Employee Relations Officer the authority to either grant or deny (or partially grant or deny) a grievance on behalf of the City prior to costly and lengthy arbitration proceedings. Importantly, that authority may be delegated to a “designee.” [Art. X.C.3 [“The Employee Relations Officer or designee shall respond in writing to the grievance...”].)

In this case, the Employee Relations Officer’s “designee” is Jeffrey Sloan, an independent contractor. [See “Step Three Hearing Services Contract” (“scope of services shall include supporting the City’s Human Resources Management Department, Labor Relations Division in conducting Step 3 Hearing Services...”); Schedule M, Part B (Sloan authority includes “[a]ll aspects of providing Hearing Officer services for the City’s disciplinary cases and/or Step 3 grievances”).]

Contrary to the assertion in your February 25 letter, **Mr. Sloan was contracted to render “decisions,” not “recommendations.”** [“These services include, but are not limited to the following: prepare timely written decisions which demonstrate sound judgment in written statements of fact and conclusions of law.”] Your February 25 letter identifies Mr. Sloan as “an outside employee relations officer hired by the City of Oakland,” and his contract makes clear that he **“has complete and sole discretion for the manner in which the work under [the] Agreement is performed.”**

Thus, the statement of departing Human Resources Assistant Director Allyson Cook in her February 25, 2021 letter that “Employ Relations has been unable to resolve” the grievances (which she was ordered to write) is contrary to the facts. **Because the City delegated its Step 3 decision making authority to Mr. Sloan, his decisions constitute offers by the City to resolve their grievances.** Stated another way, should our clients so choose, they have the right to accept Mr. Sloan’s Step 3 “decisions” rendered on behalf of the City as a final resolution of their grievances. They also may choose to reject the Step 3 decisions and advance the grievances to arbitration and an evidentiary hearing, per Step 5 of the grievance process and their right to procedural due process. However, to make this determination (as is their right) they must actually receive and review those decisions, which the City has thus far improperly withheld.¹ Either way, the City has no lawful ability to ignore or withhold the decisions rendered by its contracted Step 3 hearing officer.

Indeed, in the more than 20 years this firm has been representing City police officers, we have **never** been made aware of the City ignoring – or refusing to acknowledge and/or provide – the written decision of a Step 3 hearing officer. Doing so now makes it obvious that the City is violating our clients’ statutory and contractual rights for no reason other than dissatisfaction with the results of Mr. Sloan’s detailed review of the facts and law. Those results are, after all, what the City paid considerable tax payer money for.

¹ An issue addressed in my letter dated March 1, 2021.

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In sum, Employee Relations has rendered a decision on each of the outstanding grievances, and our clients are entitled to receipt of those decisions. Because our clients have not yet had the opportunity to review those decisions, we believe advancing the grievances to arbitration is premature. Once the City delivers the Step 3 decisions, our clients will timely notify the City of their choice.

If the City continues to violate our clients' POBRA rights, they are prepared to enforce their rights in superior court. (Gov. Code § 3309.5(c) ["The superior court shall have initial jurisdiction over any proceeding brought by any public safety officer..." to enforce POBRA.]

Very truly yours,

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